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No. 92-1510

Supreme Court, U.S.

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In The
Supreme Court of the United States
October Term, 1993

◆
MICHAEL J. CAVANAUGH, Executive Director of the
South Carolina Department of Probation, Parole, and
Pardon Services; South Carolina Department of
Probation, Parole, and Pardon Services,

Petitioners,

vs.

GARY LEE ROLLER,

Respondent.

◆
On Writ Of Certiorari To The
United States Court Of Appeals
For The Fourth Circuit
◆

PETITIONERS' BRIEF ON THE MERITS
◆

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QUESTIONS PRESENTED FOR REVIEW**I.**

IS FEDERAL JURISDICTION FOR RESPONDENT'S CHALLENGE OF SOUTH CAROLINA'S PAROLE RELEASE SYSTEM PROPER UNDER 42 U.S.C. § 1983, OR SHOULD IT HAVE BEEN BROUGHT UNDER HABEAS CORPUS AFTER STATE REMEDIES WERE EXHAUSTED?

II.

IS THE 1986 STATUTORY AMENDMENT TO THE SOUTH CAROLINA CODE, WHICH INCREASES THE TIME BETWEEN PAROLE CONSIDERATION HEARINGS FROM ONE TO TWO YEARS FOR OFFENDERS CONVICTED OF VIOLENT CRIME, AN INSUBSTANTIAL PROCEDURAL CHANGE OUTSIDE THE PURVIEW OF THE *EX POST FACTO* CLAUSE, AS THE SUPREME COURT OF SOUTH CAROLINA HELD IN *GUNTER V. STATE*, 378 S.E.2d 443 (1989)?

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PETITIONERS' BRIEF ON THE MERITS

CITATION OF THE OPINIONS AND JUDGMENTS
DELIVERED IN THE COURTS BELOW

Roller v. Cavanaugh, et al., Case 3:90-3054-20J. Opinion and Order of the United States District Court for the District of South Carolina filed November 8, 1991, is reprinted in the Joint Appendix (J.A. 23).

Roller v. Cavanaugh, et al., Case 3:90-3054-20J. Judgment of the United States District Court for the District of South

Carolina filed November 12, 1991, is reprinted in the Joint Appendix (J.A. 27).

Roller v. Cavanaugh, et al., 984 F.2d 120 (4th Cir. 1991) is reprinted in the Joint Appendix (J.A. 28).

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STATEMENT OF THE GROUNDS ON WHICH THE JURISDICTION OF THE UNITED STATES SUPREME COURT IS INVOLVED

The petitioner has been granted review of the January 15, 1993, opinion and judgment of the United States Court of Appeals for the Fourth Circuit. The petitioner filed a petition for writ of certiorari with the United States Supreme Court on March 8, 1993, and it was granted on May 24, 1993.

Jurisdiction is conferred on the United States Supreme Court by 28 U.S.C. § 1254(1) and 28 U.S.C. § 1257(8), as characterized in Supreme Court Rule 10.1(a). The former statute allows this Court to review, upon petition for writ of certiorari, cases of the courts of appeals, before or after judgment has been rendered. The latter statute allows the Court to review, also upon petition for writ of certiorari, final judgments rendered by the highest court of a state in which a decision could be had, where the validity of a state statute is being drawn in question on the ground of its being repugnant to the Constitution. In this matter, South Carolina Code Sections 16-1-60, 24-21-645, 24-21-650 are being drawn in question on the ground that their application to the Respondent violates the *Ex Post Facto* Clause. Further, this is a matter in which a United States court of appeals has decided a

federal question in a way that conflicts with a state court of last resort. The Fourth Circuit's decision squarely conflicts with the South Carolina Supreme Court's decision in *Gunter v. State*, 298 S.C. 113, 378 S.E.2d 443 (1989), on the *ex post facto* question; and on the threshold question of federal jurisdiction under 42 U.S.C. § 1983, it conflicts with this Court's decision in *Preiser v. Rodriguez*, 411 U.S. 475 (1973), and its line.

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CONSTITUTIONAL PROVISION AND STATUTES INVOLVED

Article I, § 9 clause 3 provides "No . . . *ex post facto* law shall be passed."

1981 Act No. 100, § 9, S.C. Code Ann., § 24-21-610 (1976), enacted June 15, 1981 (parole eligibility) is set forth in J.A. at 37.

1981 Act No. 100, § 10, S.C. Code Ann., § 24-21-620 (1976), enacted June 15, 1981 (parole hearing rescheduling) is set forth in J.A. at 39.

1986 Act No. 462, § 31, S.C. Code Ann., § 24-21-645 (1976), enacted June 3, 1986 (parole hearing rescheduling) is set forth in J.A. at 40.

1986 Act. No. 462, § 32, S.C. Code Ann., § 24-21-650 (1976), enacted June 3, 1986 (parole hearing rescheduling) is set forth in J.A. at 40.

1986 Act. No. 462, § 33, S.C. Code Ann. § 16-1-60 (1976), enacted June 3, 1986 (definition of violent crime) is set forth in J.A. at 41.

STATEMENT OF THE CASE

The respondent, Gary Lee Roller, was convicted of voluntary manslaughter and grand larceny in the Chester County Court of General Sessions for the State of South Carolina. Both crimes were committed on December 13, 1982. Roller was sentenced on March 25, 1983. (J.A. 6) On October 27, 1990, Roller became eligible for parole under the parole eligibility statute in force on December 13, 1982, the date he committed his crimes. (J.A. 37) That parole eligibility date has not changed.

When Roller committed his crimes, the procedural law governing the rescheduling of parole hearings following a rejection set the time at one year. *S.C. Code Ann.* § 24-21-620 (1976), as amended. (J.A. 39) Effective June 3, 1986, the law controlling the rescheduling procedure was changed to require a two-year period between parole hearings for violent offenders. *S.C. Code Ann.* §§ 24-21-645, 24-21-650. (J.A. 40) At the same time, the South Carolina General Assembly enacted *S.C. Code Ann.* § 16-1-60, which enumerated those crimes deemed to be violent and included in that enumeration the crime of voluntary manslaughter. (J.A. 41) The punishment for voluntary manslaughter, including parole eligibility, however, remained exactly what it had been when Roller committed that crime in 1982. The South Carolina Supreme Court ruled in *Gunter v. State*, 298 S.C. 113, 378 S.E.2d 443 (1989), that the decrease in the frequency of parole hearings for violent offenders was a permissible procedural change and did not violate the *Ex Post Facto* Clause of the Constitution.

SUMMARY OF THE ARGUMENT

This case raises two questions. The first question invites the Court to revisit *Preiser v. Rodriguez*, 411 U.S. 475 (1973), and the problem of defining the line between federal jurisdiction under 42 U.S.C. § 1983 of the Civil Rights Act and federal Habeas Corpus. As presented for the Court's review, the question is whether federal jurisdiction for the Respondent's challenge of a South Carolina law that decreases the frequency of his parole reconsideration hearings from one year to two years is properly founded on Section 1983; or, whether the Respondent's challenge reaches the very "core of habeas corpus" and, as such, should require him to exhaust the remedies available to him in the state courts of South Carolina. The Fourth Circuit, adhering to the interpretation it gave *Preiser* in the case of *Strader v. Troy*, 571 F.2d 1263 (4th Cir. 1978), held that federal jurisdiction to hear the prisoner's petition was properly founded on § 1983.

We think the Fourth Circuit erred and should be reversed. The *Strader* interpretation of this Court's decision in *Preiser* expands federal jurisdiction under Section 1983 in these prisoner petition cases far beyond the holding in *Preiser*. In *Preiser*, this Court held that "when a state prisoner is challenging the very fact or duration of his physical imprisonment, and the relief he seeks is a determination that he is entitled to immediate release or a speedier release from that imprisonment, his sole federal remedy is a writ of habeas corpus." And a speedier release, we think, is just what the Respondent is seeking when he demands a more frequent parole review—whether he says it in so many words, or not. That, after

all, is what his *ex post facto* challenge, at its core, seeks to achieve.

We must look to the *core* of the Respondent's claim, not merely to the language in which he couches that claim. The Fourth Circuit, relying on *Strader*, ignores the core of the Respondent's claim and sees only the language. In this view, the Fourth Circuit's analysis might fairly be summarized as follows: The Respondent never comes out and says he is seeking a speedier release; therefore, that's not what he's seeking. *Preiser* looks deeper, to the bedrock of the claim. As demonstrated by the Fourth Circuit's decision below, and indeed by the wide difference of opinion expressed by federal courts in every circuit when confronted with a *Preiser* puzzle, this Court, we suggest, needs once again to take the measure of *Preiser's* depth to some fathom of greater precision. At bottom, *Preiser* was deeply concerned with the larger principles of federalism and comity between the federal government and the governments of the several states. The Fourth Circuit's decision, we believe, effectively distorts these principles, under which, when viewed in accord with the teachings of *Preiser*, this case should never have gained entry in the federal courts.

The second question goes to the merits of the Respondent's claim: Whether or not a 1986 statutory amendment to the South Carolina Code, which increases the time between parole reconsideration hearings from one to two years for offenders convicted of violent crime, is an insubstantial procedural change outside the purview of the *Ex Post Facto* Clause. The South Carolina Supreme Court, in *Gunter v. State*, 378 S.E.2d 443 (1989), a case directly on point, held that the change presented no

ex post facto violation. The Fourth Circuit disagreed, effectively overruling South Carolina's highest court.

We believe that the Fourth Circuit's decision on the merits was error. The Fourth Circuit oversimplified by equating reconsideration for parole with eligibility for parole. The two are not the same, and the difference is absolutely crucial to a correct analysis of the *ex post facto* problem presented here. When reconsideration for parole is equated with parole eligibility the analysis comes to an end, because parole eligibility attaches to the punishment. A change in parole eligibility, applied retroactively to the disadvantage of the prisoner, violates the constitutional prohibition.

But the point is irrelevant, because parole eligibility was never at issue here. Respondent's parole eligibility has remained unchanged from the date of his conviction and sentencing. If we fix our attention on the relevant—the scheduling of parole reconsideration hearings—we arrive at this Court's *ex post facto* analysis in *Collins v. Youngblood*, 497 U.S. 37 (1990). In *Collins*, the Court purposefully reached back to the “original understanding” of the *Ex Post Facto* Clause, expressed in *Calder v. Bull*, 3 Dall. 386 (1798), to reject the increasingly wide-spread notion that any change which alters the situation of a party to his disadvantage violates the Clause. In place of this mistaken idea, the Court substituted the notion that the *Ex Post Facto* Clause “was intended to secure substantial personal rights against arbitrary and oppressive legislation.” This idea allows for a flexible case-by-case approach. When this approach is applied to the particular facts presented in this case, we believe that the change, though retroactive, is not one of so substantial a moment

as to violate any personal rights of the Respondent intended to be secure against arbitrary and oppressive legislation. The Fourth Circuit simply avoids the real question altogether.

Should the matter go to the merits, we would ask the Court to reverse the Fourth Circuit on the *ex post facto* question and correct this error. Should it not go to the merits because the Court finds jurisdiction improperly founded on Section 1983, we would ask for an order vacating the Fourth Circuit's opinion and judgment, to ensure that it will have no binding effect.

I.

THE PRISONER'S CHALLENGE OF SOUTH CAROLINA'S PAROLE RELEASE SYSTEM REACHES THE VERY "CORE OF HABEAS CORPUS" AND, BECAUSE IT DOES, FEDERAL JURISDICTION IS NOT PROPER UNDER 42 U.S.C. § 1983.

Section 1983 is not available to test the application of the challenged parole law. The action is cognizable only in habeas corpus. *Preiser v. Rodriguez*, 411 U.S. 475 (1973), states the rule that controls here:

[W]e hold today that when a state prisoner is challenging the very fact or duration of his physical imprisonment, and the relief he seeks is a determination that he is entitled to immediate release or a speedier release from that imprisonment, his sole federal remedy is a writ of habeas corpus. [emphasis added]

Id. This holding forecloses Respondent's § 1983 action here. *Preiser* also teaches that "a § 1983 is a proper remedy for a state prisoner who is making a constitutional

challenge to the conditions of his prison life, but not to the fact or length of his custody." *Id.* at 499. The District Court relied on *Strader v. Troy*, 571 F.2d 1263 (4th Cir. 1978), which incorrectly interprets *Preiser*. The Fourth Circuit held in *Strader* that *Preiser* stands for the proposition that "§ 1983 may be used to challenge parole procedures" only when the prisoner seeks "consideration for parole." Relying thus on *Strader*, the District Court was then able to conclude that Roller's use of § 1983 was proper because he "does not say he is entitled to parole."

But in fact that is precisely his claim—that he is being unlawfully restrained or confined by being denied an annual parole consideration hearing. He is seeking to shorten his confinement. Historically, this issue has always been addressed by habeas corpus, not § 1983. In order to get into the federal courts on § 1983, Roller strenuously denies that what he seeks is his release from prison. However, his claim that South Carolina has violated the *Ex Post Facto* Clause of the Constitution appears to be predicated on either of two premises: that annual parole consideration hearings are a part of his punishment and that by extending the interval between hearings, his punishment has been increased; or that the retroactive denial of an annual parole hearing has substantially disadvantaged him. Either premise asks the Court to focus on the notion that the relief he seeks in his complaint controls whether the claim itself lies in habeas or § 1983. He seeks thereby to divert attention from the core of his complaint, which is nothing other than a challenge to the duration of his physical imprisonment, a challenge which only habeas can address. See *Del Raine v.*

Carlson, 826 F.2d 698, 702 (7th Cir. 1987); *Wilson v. Lockhart*, 949 F.2d 1051 (8th Cir. 1991); *Alexander v. Johnson*, 742 F.2d 117 (4th Cir. 1984).

Roller cannot have it both ways. Either he is challenging the increase in the time between his parole hearings as constituting an *ex post facto* violation when applied to him, in which case the action lies solely in habeas corpus (*Preiser*, 411 U.S. at 500) and must be played out in the South Carolina state courts. Or he is not challenging that increase, in which case it is a mystery just what he might be challenging as the retroactive disadvantage supposed to be substantial enough to violate the *Ex Post Facto* Clause. It is clear that the core of his *ex post facto* challenge, which attacks the retroactively applied decrease in the frequency of his parole consideration hearings, is a challenge of his future restraint, in order to obtain for himself an earlier release. To call it anything else is semantic subterfuge. The Fourth Circuit itself has said as much in cases coming after *Strader* and interpreting *Preiser*. *Leonard v. Hammond*, 804 F.2d 838 (4th Cir. 1986); *Todd v. Baskerville*, 712 F.2d 70 (4th Cir. 1983); *Alexander v. Johnson*, 742 F.2d 117 (4th Cir. 1984). The Eighth Circuit has well observed that the chance for an earlier parole release, or the chance that a sentence might be commuted to a term of years, falls within habeas corpus. The Eighth Circuit justifies this extension of *Preiser* on the grounds that a state court system should have the first opportunity to decide the merits of the underlying constitutional issue. *Wilson v. Lockhart*, 949 F.2d 1051 (8th Cir. 1991).

Insofar as *Strader* ignores all this, it simply gets *Preiser* wrong. And in so doing, *Strader* needlessly compounds the problem, already "difficult enough," *Hamlin v. Warren*, 664 F.2d 29, 33 (4th Cir. 1981), *cert. denied*, 455 U.S. 911 (1982), confronting state and federal courts alike: How to sort through the frustrating conflict between the civil rights and habeas corpus remedies for state prisoners. The heart of this conflict and, more important, how we finally resolve the conflict, implicates our deepest concern for and understanding of certain fundamental notions of federalism and all that that bedrock principle entails in the way of comity between the federal government and the several states. To rely on *Strader*, we believe, undermines federalism and upsets the delicate balance which comity helps to keep. *Braden v. 30th Judicial Circuit of Kentucky*, 410 U.S. 484 (1973) (exhaustion of state-court remedies ensures comity between federal and state courts). For, what *Strader* suggests is that South Carolina's right to exercise concurrent jurisdiction with the federal courts in deciding questions of federal constitutional law need not be accorded the full respect that federalism says is its due, and may in fact be ignored altogether whenever a state prisoner, crafty enough to capitalize on the confusion now troubling the federal courts, renames his habeas corpus petition a § 1983 claim for relief.

The Court should also recognize that there is a further obstacle in the limitations on suits against the states imposed by the Eleventh Amendment. As this Court stated in the leading case of *Will v. Michigan Dept. of State Police*, 491 U.S. 58, 65 (1989), "Section 1983 provides a

federal forum to remedy many deprivations of civil liberties, but it does not provide a federal forum for litigants who seek a remedy against a State for alleged deprivations of civil liberties." The Eleventh Amendment, as the Court put it, "bars such suits unless the State has waived its immunity." *Id.* And South Carolina, we would assure the Court, has never waived its immunity here. Further, although *Will* suggests that an action against a state official in his official capacity for prospective injunctive relief under § 1983 is proper because such an action would not be treated as an action against the state, the suggestion doesn't fit the case here. *Id.* at 2311, n.10. What Roller is challenging is not the official capacity action of a state official; what he is challenging is the system South Carolina has set up for reviewing paroles after a rejection. The difficulty in relying on *Strader* is thus complicated. And the only way out for the Court, we would suggest, is for the Court to overrule the Fourth Circuit's reliance on *Strader* in favor of the lucid reasoning expressed in *Preiser* and well followed by the Fourth Circuit in *Todd* and *Leonard*.

The analysis by which cases are included within or excluded from § 1983 is difficult at best. Focusing on the distinction between the nature of the complaint and the nature of the relief is essential. This focus does not, however, always yield a bright-line test. A finer focus may be necessary. If the state has provided a specific legal remedy to address problems arising out of specific issues such as parole, then exhaustion should be required in all cases where the inmate is seeking release or earlier release from confinement. If a state has not provided a

remedy, the debate goes on. This Court has often emphasized that the states should be allowed to experiment and develop their own procedures. See *Gerstein v. Pugh*, 420 U.S. 103, 123 (1987); *Wolff v. McDonnell*, 418 U.S. 539 (1974); *Greenholtz v. Inmates of Nebraska Penal and Correctional Complex*, 442 U.S. 1 (1979). Finally, it is crucial for the Court to remember that South Carolina has in place adequate state-law remedies—the Uniform Post-Conviction Procedure Act, S.C. Code Ann. § 17-27-10 *et seq.* and the Tort Claims Act, S.C. Code Ann. § 15-78-10 *et seq.*—that have always been available to Roller. He need only have availed himself of those remedies, which he has chosen not to do. Instead, Roller resorts to the Civil Rights statute in order to circumvent the exhaustion requirements of the habeas corpus statute. For this Court to countenance such highjinks even for a moment would return us to the state of affairs that existed in 1971, before *Preiser* dealt with the problem. It was a state of affairs that led one judge of the Second Circuit to lament, "[s]tate prisoners are increasingly resorting to the Civil Rights statutes in order to circumvent the [exhaustion] requirements of [the habeas corpus statute]." *Rodriguez v. McGinnis*, 451 F.2d 730 (2d Cir. 1971). The situation, of course, was later corrected when the Court reversed in *Preiser*. The reasoning that should guide the Court's deliberations here is first stated in *Preiser*. Certainly the Fourth Circuit decision does serious harm to federal-state comity. South Carolina therefore requests that this Court reverse the Fourth Circuit and rule that a challenge to the denial of annual parole consideration hearings can only be brought under the habeas corpus statutes after exhaustion of state remedies.

II.

AN INCREASE IN THE TIME BETWEEN PAROLE CONSIDERATION HEARINGS FROM ONE TO TWO YEARS, APPLIED RETROACTIVELY, IS AN INSUBSTANTIAL PROCEDURAL CHANGE OUTSIDE THE PURVIEW OF THE EX POST FACTO CLAUSE.

The *ex post facto* question isn't as simple as Roller and the Fourth Circuit have made it out to be. The Fourth Circuit wrongly equates parole eligibility in South Carolina with parole reconsideration. Once this equation is made, it is but a short step to the conclusion that the statutory change in question violates the *ex post facto* prohibition. It is a short step because the equation, albeit an erroneous one, puts the question squarely under the well-established rule that parole eligibility is a substantive matter and attaches to the punishment. Change parole eligibility retroactively and to the prisoner's disadvantage, and the prohibition against *ex post facto* laws is violated.

True enough. But the point is wholly irrelevant to the question here. The change in the procedure setting the time between parole consideration hearings is a matter of great importance. But it is qualitatively and quantitatively different from a change in parole eligibility. In South Carolina, once a prisoner becomes eligible for parole on his sentence the eligibility vests; thereafter, he is reconsidered for parole every year. In South Carolina, a prisoner becomes *eligible* for parole on his sentence only once; thereafter, he is reconsidered for parole every year (in the case of non-violent offenders) or every two years (in the case of violent offenders). See S.C. Code Ann. §§ 24-21-645 and 24-21-650 (1976). (J.A. 40) Roller's date

of *eligibility* for parole has not changed; that date was fixed from the start. See S.C. Code Ann. § 24-21-610 (1976), as amended. (J.A. 37) What has changed is the procedure governing the interval between parole hearings after a rejection. For Roller that interval used to be one year (see § 24-21-620); now it is two years (see § 24-21-645). (J.A. 39, 40 respectively) This is all that has been changed. No punishment has been added to Roller's original sentence after the fact. His sentence has not been lengthened. His parole eligibility has not been revoked or altered in any way. No "gain time" credits have been lost retroactively. As the Supreme Court of South Carolina found in *Gunter v. State*, 298 S.C. 113, 378 S.E.2d 443 (1989), "the standards governing petitioner's parole eligibility have not been changed. Instead, only the frequency with which petitioner can be reconsidered for parole has been altered." The only change in Roller's situation is just this and nothing more—an insubstantial procedural change determining how frequently he will be reconsidered for parole.

South Carolina concedes that this change does operate to the prisoner's disadvantage, but it most certainly does not offend the *Ex Post Facto* Clause. Not all retroactive changes offend, a point well-established in the precedent of this Court:

[T]he prohibition of *ex post facto* laws does not extend to every change of law that "may work to the disadvantage of a defendant." It is intended to secure "substantial personal rights" from retroactive deprivation and does not "limit the legislative control of remedies and modes of procedure which do not affect matters of substance."

Portley v. Grossman, 444 U.S. 1311, 1312 (1980), quoting *Dobbert v. Florida*, 432 U.S. 282, 293 (1977). See also, *Miller v. Florida*, 482 U.S. 423 (1987); *Beazell v. Ohio*, 269 U.S. 167, (1925); *Hopt v. Utah*, 110 U.S. 574, 590 (1884).

This Court reminds us in *Collins v. Youngblood*, 497 U.S. 37, (1990), that we must go back to the beginnings of *ex post facto* analysis, to clear the books of much of the confusion that has arisen in recent years. In *Beazell v. Ohio*, 269 U.S. 167, 171 (1925), this Court confidently summarized the general rule of *ex post facto* analysis, which had its beginning in *Calder v. Bull*, 3 Dall. 386 (1798):

It is settled, by decisions of this Court so well known that their citation may be dispensed with, that any statute which punishes as a crime an act previously committed, which was innocent when done; which makes more burdensome the punishment for a crime, after its commission, or which deprives one charged with crime of any defense available according to law at the time when the act was committed, is prohibited as *ex post facto* [citations omitted].

Collins, which goes back to *Calder* via *Beazell*, reminds us of the Court's own "original understanding" of the *Ex Post Facto* Clause. *Id.* at 42. That original understanding rejects the notion—now increasingly current in some circuits, and among them, the Fourth Circuit, in particular—that any change which alters the situation of a party to his disadvantage effectively violates the *Ex Post Facto* Clause. *Id.* at 49. *Collins* emphasizes, in both its majority and concurring opinions, that the *Ex Post Facto* Clause "was intended to secure substantial personal rights

against arbitrary and oppressive legislation." *Id.* at 46 and 57, quoting *Malloy v. South Carolina*, 237 U.S. 180, 183 (1915). Just what alterations of procedure will be held to be of sufficient moment to transgress the constitutional prohibition "cannot be embraced within a formula or stated in a general proposition. The distinction is one of degree." *Collins* at 57, quoting *Malloy*.

The Fourth Circuit's reasoning leaves no room for this tried and true distinction. It leaves no room for case-by-case analysis of *ex post facto* problems based on the countless variations of fact these cases present. It also leaves no room for case-by-case analysis based on the numerous variations of law within the several states. The Fourth Circuit's analysis reduces all levels of complexity to the lowest common denominator of simplicity: all changes in the law which operate retroactively to the disadvantage of the convicted criminal, no matter how slight, violate the prohibition against *ex post facto* laws. Furthermore, the Fourth Circuit's simplistic analysis effectively homogenizes all state laws in such a way as to obliterate their distinctive differences. This reduction of differences for the sake of easy analysis ignores all state lines and state laws. Ultimately, it discourages states from once-permissible experimentation.

Such a reduction occurs when the Fourth Circuit likens the case of *Akins v. Snow*, 922 F.2d 1558 (11th Cir. 1991), to this case. Whether the Fourth Circuit sees it or not, this case is distinct from *Akins*, and the distinction is based on an important matter of substance and degree, one which this Court has recognized under *Collins v. Youngblood*. As a matter of law and fact, the situation presented in *Akins* is vastly different from the situation

here. In *Akins*, the interval between parole reconsideration hearings after a denial was increased from one year to *eight* years. This was even longer than it took to become eligible for parole in the first instance, which was seven years in *Akins*' case. The Eleventh Circuit equated the period between parole hearings with parole eligibility itself. It did so on the basis of its finding that the Georgia legislature "considers a parole reconsideration hearing an essential and important part of parole eligibility." 922 F.2d at 1562. It was then easy for the *Akins* Court to conclude that the change increased the punishment retroactively and therefore violated the prohibition against *ex post facto* laws. It is important to emphasize, once again, that in South Carolina *parole eligibility* and *parole reconsideration* are statutorily two different things, separate and distinct.

The Fourth Circuit's decision, however, ignores this crucial distinction between parole eligibility and the scheduling of parole consideration hearings. In doing so, the Fourth Circuit, without expressly saying so, concludes that a change in the scheduling of parole consideration hearings is the same thing as a change in the inmate's parole eligibility (as the *Akins* Court held) and therefore is a violation of the *Ex Post Facto* Clause. The sweeping import of the Fourth Circuit's analysis is that no change in a state's parole procedure which disadvantages an inmate can be made. This result conflicts with the holding in *Collins*, as well as the holdings in *Dobbert* and *Portley*. *Supra*.

South Carolina would not deny that even under its own parole system such a change as was at issue in *Akins* would violate the *Ex Post Facto* Clause. Clearly, any

increase of seven years, from one to eight years between parole reconsideration hearings, operates as a *substantial* disadvantage by denying the inmate a meaningful opportunity for a parole hearing. See *Rodriguez v. U.S. Parole Commission*, 594 F.2d 170, 174-175 (7th Cir. 1979). Such a degree of change is of sufficient moment to transgress the constitutional prohibition. Indeed, a change in parole review potentially far more severe than the one before the Court here—a denial of annual parole review where the law had previously provided for such review—was recently upheld by the Eighth Circuit, reviewing a change in Minnesota's parole release mechanism, as presenting no *ex post facto* violation. See *Bailey v. Gardebring*, 940 F.2d 1150 (8th Cir. 1991), *cert. denied*, *Bailey v. Noot*, 112 S.Ct. 1516 (1992). In *Bailey*, the prisoner lost not only his annual parole review but any scheduled date of review. The Eighth Circuit went so far as to hold that Minnesota's parole regulations were not laws for the purpose of the *Ex Post Facto* Clause. *Id.* South Carolina's parole law does not go anywhere near this extreme. This is how *Collins* would approach the *Akins* problem. Looking at the facts of the case at bar, *Collins* would say that nothing of the kind has occurred here. Roller has had, and still enjoys, a meaningful opportunity for parole under South Carolina's system of paroles.

South Carolina has more freedom than Georgia to experiment with changes in *parole reconsideration*, because South Carolina's parole laws do not make parole reconsideration an integral or essential part of parole eligibility, as do Georgia's parole laws. South Carolina should not lose its legitimate freedom to experiment with its parole system in the way that it has distinguished

between parole reconsideration hearings for violent and non-violent offenders. South Carolina will lose a large part of that legitimate freedom to experiment if the Fourth Circuit's holding is affirmed. This Court has well recognized that the several states should be encouraged to develop their own parole systems and be allowed to experiment with ways of improving those parole systems. *Greenholtz v. Inmates of Nebraska Penal and Correctional Complex*, 442 U.S. 1 (1979); *Gerstein v. Pugh*, 420 U.S. 103 (1975). *Wolff v. McDonnell*, 418 U.S. 539 (1974). The Fourth Circuit's approach to *ex post facto* analysis, as evinced here, undermines this Court's wise concern for the right of every state to fashion its own parole system, leaving to each state as much freedom as possible under the federal constitution. The Court should find, therefore, that this case presents no violation of the *Ex Post Facto* Clause and reverse the Fourth Circuit's decision.

CONCLUSION

Based upon the foregoing reasons, the judgment of the Fourth Circuit Court of Appeals should be reversed. This Court should hold that 42 U.S.C. § 1983 does not afford a jurisdictional avenue to challenge South Carolina's parole system, and it should further hold that South Carolina's retroactive application of a two-year wait between parole consideration hearings does not violate the *Ex Post Facto* Clause.

Respectfully submitted,

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IN THE SUPREME COURT OF THE UNITED STATES

PAUL CASPARI and
JEREMIAH W. (JAY) NIXON,

Petitioners,

v.

CHRISTOPHER BOHLEN,

Respondent.

No. 92-1500

**RESPONDENT'S MOTION FOR LEAVE TO
PROCEED IN FORMA PAUPERIS**

COMES NOW Respondent Christopher Bohlen, by and through counsel, to respectfully request this Court grant him leave to proceed in forma pauperis in accordance with Rule 39.1, Supreme Court Rules on the ground that the Eighth Circuit Court of Appeals appointed the undersigned counsel to represent Respondent Christopher Bohlen pursuant to the Criminal Justice Act.

Respectfully Submitted,


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Supreme Court, U.S.

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